

**ARTISAN TILE AT WHITFIELD DESIGN LLC
D/B/A ARTISAN TILE
1200 Boston Post Road
Guilford, CT 06437
CT Registration: HIC #: 0646519**

AGREEMENT FOR HOME IMPROVEMENT SERVICES

THIS AGREEMENT is made as of this ____ day of _____, 2025, by and between **Artisan Tile At Whitfield Design LLC**, a limited liability company organized under the laws of Connecticut having a principal business address of 1200 Boston Post Road, Guilford, CT, 06437, doing business as Artisan Tile (hereinafter referred to as “Contractor”) and _____ and _____, both individuals residing at _____ (hereinafter collectively referred as the “Owner”).

In consideration of the mutual promises and conditions contained herein, the Parties agree as follows:

1. **Scope of Work.** Owner hires Contractor to perform the home improvement services described in **Exhibit A**, which is attached hereto and incorporated herein by reference (the “Work”). Contractor shall furnish all labor, materials (unless expressly designated in Exhibit A as Owner-provided), equipment, and services necessary to complete the Work at the Property in accordance with the terms of this Agreement.
2. **Property Location.** Contractor will conduct the Work at the following address (hereinafter referred to as the “Property”): _____

3. **Contract Price.** The total contract price for the Work ("Contract Price") is:

Labor: \$ _____

Materials: \$ _____

(Materials to be paid in full by Owner at time of ordering; see Section 5.)

Total Contract Price: \$ _____

4. **Payment Schedule.**

a) **General.** Contractor shall be paid strictly in accordance with the Payment Schedule for Labor, the Payments for Materials provisions, and any written, signed Change Orders issued under this Agreement. No Work shall proceed without payments being made when due. Contractor may suspend Work for failure by Owner to make any required payment.

b) **Payment Schedule for Labor.** Owner shall pay Contractor for labor in the following installments:

1. **33.33%** of the Labor Price upon signing this Contract.
2. **33.33%** of the Labor Price upon commencement of the Work.
“Commencement” means Contractor begins physical work at the Property.
3. **33.34%** (balance) of the Labor Price upon substantial completion of the Work.

Contractor may suspend Work for any late or missed payment until all amounts due are paid in full.

c) **Payments for Materials.** All materials required for the Work shall be paid 100% by Owner at the time of ordering. Contractor may require Owner to pre-approve material lists and material pricing before placing any order. Materials ordered on behalf of Owner may be deemed special order and may be non-refundable. Owner understands and agrees that materials cannot be returned without restocking fees, if allowed at all.

d) **Late Fees.** All payments shall be made when due. Any payment not received within five (5) days after its due date shall accrue interest at one percent (1%) per month (or the maximum rate permitted under Connecticut law, if less), calculated until the date payment is received in full. Interest is in addition to Contractor’s right to suspend or terminate the Work for nonpayment and to recover all costs of collection as permitted under this Agreement.

5. **Start Date and Completion Date.** The Work shall commence on _____ (“Start Date”) and shall be substantially completed on or before _____ (“Completion Date”), subject to change orders, excusable delays and extensions permitted under this Agreement. Owner shall provide timely access to the site, areas of work, and staging; timely approvals and selections; and prompt responses to requests for information to avoid delay.

6. **Force Majeure; Extensions of Time.** Contractor shall not be responsible or liable for any delay, interruption, or failure to perform the Work caused by events beyond Contractor’s reasonable control (“Force Majeure Events”). Force Majeure Events include, but are not limited to: severe weather or natural disasters; epidemics or pandemics; labor strikes, lockouts, or workforce shortages; fire, casualty, or other calamity affecting the Property, supply chain disruptions or material unavailability; manufacturer delays; governmental orders, inspections, permit delays, regulatory changes, or shutdowns; utility interruptions; acts of vandalism, theft, or damage by third parties; additions to or modifications of the Scope of Work; Owner-caused delays, including failure to make progress payments; and any other event or condition that renders performance impracticable or impossible.

If a Force Majeure Event occurs, Contractor’s time for performance, including the scheduled completion date, shall be extended for a period equal to the duration of the delay, and Contractor shall provide written notice to Owner identifying the cause and the anticipated extension. Any such delay shall not constitute a breach of this Agreement.

Contractor is entitled to additional time and equitable compensation for concealed or unknown conditions, hazardous materials, utility conflicts, code changes, discovery of nonconforming existing conditions, supply chain disruptions, severe weather, labor shortages, or other force majeure events beyond Contractor's control.

7. **Change Orders.** No changes, additions, deletions, or alterations to this Agreement, including but not limited to modifications to the Scope of Work, shall be effective unless set forth in a written Change Order signed by both Owner and Contractor. No work shall proceed based on verbal instructions or understandings. All approved Change Orders shall be incorporated into and become a part of this Agreement, and any additional cost or credit associated with the Change Order shall be added to or deducted from the Contract Price accordingly.

8. **Permits and Approvals.** Contractor will obtain necessary building permits unless otherwise stated. Owner shall cooperate with all inspections and municipal requirements. If approvals, variances, HOA permissions, or engineering reports are required, Owner is responsible for obtaining them unless otherwise agreed.

9. **Contractor Insurance and Registration Information.** Contractor represents and warrants that it is duly registered as a Home Improvement Contractor in the State of Connecticut (HIC #: 0646519) and that its registration is current and in good standing. Contractor maintains commercial general liability insurance in compliance with all applicable state requirements. Upon request, Contractor shall provide Owner with a certificate of insurance evidencing such coverage.

10. **Contractor Warranty.** Contractor warrants to Owner that: (1) all materials and equipment furnished under this Contract will be new and of good quality unless otherwise specified in this or required by this Contract or any written change order executed by all parties; and (2) the Work will be performed in a workmanlike manner consistent with industry standards. Any manufacturer warranties for materials, if applicable, shall be passed through to the Owner to the extent permitted.

Contractor's warranty does **not** apply to, and Contractor shall have no responsibility for:

- Damage caused by misuse, neglect, improper maintenance, or acts of others;
- Pre-existing conditions at the Property; or
- Normal wear and tear.

11. **Ownership and Authority Regarding Property.** Owner represents and warrants that they are the lawful owner of the Property and have full authority and legal capacity to enter into and execute this Agreement.

12. **Owner Obligations.** Owner agrees to the following obligations under this Agreement:

- a) **Access to Property.** Owner shall provide Contractor and its employees, agents, and subcontractors unrestricted access to the Property during normal working hours. Normal working hours are defined as between the hours of 8:00 am and 5:00 pm.

- b) **Utilities.** Owner shall provide access to utilities, including electricity and water, necessary for the completion of the services.
- c) **Site Preparation.** Owner agrees to ensure that the work area is clear of obstructions and hazards prior to the commencement of the Work. Owner shall remove or protect personal property from the Work area. Contractor is not responsible for damage to items not removed or protected by Owner.
- d) **Timely Decisions and Changes.** Owner shall provide prompt decisions and approvals when required by Contractor and Owner shall promptly notify Contractor of any request to change to the scope of work or changes to avoid delays in the completion of services.
- e) **Payment Obligations** Owner shall make all payments in accordance with the payment terms outlined in this Agreement. Failure to do so may result in suspension or termination of services.
- f) **Representation of Property Conditions.** Owner represents that the property conditions are accurately described to Contractor.
- g) **Non-Interference.** Owner shall not interfere with, direct, or attempt to control Contractor's workers, subcontractors, or means and methods of performing the Work. Owner shall ensure areas outside the work zone are secured from children, pets, and occupants during work hours to allow safe and efficient performance.
- h) **Compliance with Law.** Owner is responsible for ensuring that the property complies with local building and zoning codes, except as directly related to the Work provided by Contractor.
- i) **Liability for Delays.** Owner acknowledges that Contractor is not liable for delays caused by Owner's failure to meet these obligations.

13. **Site Access and Storage.** Contractor may store equipment and materials on the Property at locations convenient to the work, which may include bedrooms, bathrooms, garages, or other areas designated by Contractor to ensure safety, logistical efficiency, or protection from weather.

14. **Site Maintenance; Dust and Cleanup.** Contractor will employ reasonable dust control measures, including plastic sheeting, temporary barriers, and localized dust collection. Owner acknowledges that some dust is unavoidable. Contractor will remove debris and leave the immediate work area broom clean; cleaning beyond this area is the Owner's responsibility. Any additional or whole-home cleaning is optional, not included in the Contract Sum, and may be provided for a separate fee under a separate written agreement. Contractor is not obligated to remove dust beyond what is necessary to complete the contracted work, nor beyond its immediate work area, and Owner acknowledges responsibility for managing any residual dust.

15. Ownership of Work Product. All plans, drawings, specifications, designs, reports, and other materials prepared, developed, or provided by Contractor in connection with the Work (collectively, “Work Product”) shall remain the exclusive property of Contractor until full payment has been received for all Work performed under this Agreement. Upon full payment, ownership of all installations and materials incorporated into the Project transfers to Owner. Contractor retains ownership of proprietary methods, processes, and designs used in connection with the Work, but grants Owner a non-exclusive, perpetual, royalty-free license to use them solely for the operation, maintenance, or repair of the Project. Owner shall not reproduce, distribute, or use Contractor’s proprietary methods or Work Product for any other project or purpose without Contractor’s prior written consent.

16. Taxes and Regulatory Costs. Contractor is responsible for its own income taxes and FICA obligations; Owner will not withhold or remit such taxes. Contract Price does not include sales, use, property, value-added, or similar taxes. If any such taxes are assessed on the Work or materials furnished, Contractor may bill them separately to Owner, and Owner shall pay them when due, including any interest or penalties resulting from Owner’s late payment or nonpayment. If changes in law, building codes, inspection requirements, or utility or regulatory mandates increase the cost or time required to perform the Work, Owner shall execute a written Change Order providing an equitable adjustment to the Contract Price, schedule, or both.

17. Subcontractors. Contractor may at its discretion engage subcontractors to perform work hereunder, provided the Contractor shall fully pay said subcontractor and in all instances remain responsible for the property completion of this Contract.

18. Right to Repair. Contractor reserves the exclusive right to cure any construction defects or issues, both during the construction process and after completion of the Work. Owner shall provide Contractor with written notice of any alleged defect and shall allow Contractor a reasonable opportunity to inspect the condition. Contractor shall have fourteen (14) days from receipt of written notice to commence repairs and shall complete such repairs within a reasonable time thereafter, subject to material availability and scheduling constraints. Failure of Owner to provide written notice and a reasonable opportunity for Contractor to repair or replace any alleged defect shall excuse Contractor from any obligation to pay for repairs or replacements incurred by Owner and shall void any related claims for damages against Contractor.

19. Default and Termination.

19.1 Owner Default. Owner is in default if: (a) any payment is not made when due, or (b) Owner fails to perform any obligation under this Agreement. Contractor may immediately suspend Work for non-payment without prior notice. For all other defaults, Contractor shall provide written notice, and Owner shall have five (5) days to cure. If not cured, Contractor may terminate this Agreement. Upon termination, Owner shall pay Contractor for:

- All Work performed to date;
- All materials purchased or specially ordered (including non-refundable items);
- Demobilization costs; and

- Contractor's reasonable overhead and anticipated profit on unperformed Work.

These amounts are agreed damages, not a penalty. Contractor may pursue all other legal or equitable remedies.

19.2 Contractor Default. If Contractor materially fails to perform, Owner shall give written notice of default. Contractor shall have fourteen (14) days to cure. If not cured, Owner may terminate this Agreement and pursue legal or equitable remedies, except that Owner waives any claim for specific performance.

19.3 Termination Without Cause. Owner may not terminate without cause unless Contractor agrees in writing. If Contractor consents, Owner shall pay for all Work performed, all materials purchased or ordered, non-cancellable costs, demobilization, and reasonable overhead and profit on unperformed Work. Contractor may terminate without cause on seven (7) days' written notice, with payment due for all Work and authorized costs incurred through the termination date.

19.4 Effect of Termination. Upon any termination, absent Contractor's uncured material breach. Owner shall pay all sums due within five (5) days of Contractor's final invoice. All payment, indemnification, and warranty survive termination.

20. Contractor's Indemnification. Contractor shall indemnify, defend, and hold harmless Owner from and against any claims, damages, liabilities, losses, and costs (including reasonable attorney's fees) to the extent they arise directly from the gross negligence or willful misconduct of Contractor in the performance of the Work. Contractor's indemnification obligations shall not apply to any claims, damages, liabilities, or costs resulting from the acts or omissions of Owner or any of Owner's agents, representatives, or employees, or from conditions or circumstances outside Contractor's control. This indemnification provision shall survive the completion of the Work, final payment, and any termination or expiration of this Agreement.

21. Owner's Indemnification; Limitation of Liability; Unforeseen Conditions.

21.1 Owner's Indemnification. Owner agrees to indemnify, defend, and hold harmless Contractor, its officers, employees, agents, and subcontractors from and against any and all claims, demands, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to:

- a) Any negligent act, omission, misconduct, or breach of this Agreement by Owner or Owner's agents, representatives, guests, tenants, or other third parties on the Property;
- b) Any pre-existing, concealed, or undisclosed hazardous conditions, defects, or unsafe situations on or within the Property, including but not limited to structural defects, rot, infestation, mold, asbestos, lead, or code violations;
- c) Conditions at the Property not created by Contractor;
- d) Owner's failure to secure, remove, or adequately protect personal property;
- e) Owner's interference with, delay of, or direction relating to the Work; and
- f) Claims, demands, or disputes asserted by third parties, including tenants, guests, neighbors, invitees, or other individuals, except to the extent such

claims arise solely from Contractor's sole gross negligence or willful misconduct.

This indemnification obligation shall survive completion, termination, or expiration of this Agreement. This clause does not apply to claims resulting from the sole gross negligence or willful misconduct of Contractor, its employees, or subcontractors.

21.2 Limitation of Liability. To the fullest extent permitted by Connecticut law, Contractor shall not, under any circumstances, be liable for indirect, consequential, special, exemplary, or punitive damages, including but not limited to loss of use, loss of value, diminution in property value, loss of income, business interruption, or emotional distress.

22.3 Unforeseen or Concealed Conditions. If unforeseen, concealed, hazardous, or substandard conditions are discovered at the Property, including, without limitation, structural defects, rot, infestation, mold, asbestos, lead, contaminated materials, or building-code violations, Contractor shall have no responsibility or liability for any resulting damages, delays, or additional costs. Contractor shall immediately pause the Work and notify Owner. Work shall not resume until Owner provides written authorization and agrees to pay for any remediation, additional work, or adjustments to the Contract Price, schedule, or Scope of Work required to address such conditions. Any such written authorization shall constitute a Change Order under this Agreement in accordance with the Connecticut Home Improvement Act.

23. Pre-Existing Conditions and Third-Party Workmanship. Contractor shall not be responsible or liable under any circumstances for any defects, deficiencies, delays, damages, or failures arising out of or relating to: (a) pre-existing conditions at the Property; or (b) any work, materials, or services performed or supplied by third parties not hired or directed by Contractor, including without limitation any subcontractors, vendors, or design professionals retained directly by Owner. Contractor shall have no duty to inspect, supervise, correct, or warranty any work performed by such Owner-hired third parties.

24. Notices. Any notice, demand, or other communication required or permitted under this Agreement shall be in writing and shall be deemed properly given if:

- a) Delivered personally to the recipient at the address set forth in the opening section of this Agreement; or
- b) Sent by first-class U.S. Mail, postage prepaid, and addressed to the recipient at the address set forth in the opening section of this Agreement, in which case it shall be deemed given three (3) days after mailing.

Notices may also be delivered by other means if agreed in writing by both parties.

25. Prevailing Party Attorney Fees. In any dispute, contest, action, proceeding, arbitration or litigation between the parties hereto arising out of or relating to this Agreement and/or the enforcement or the interpretation of this Agreement, the prevailing party shall be entitled to recover from the non-prevailing party all costs, expenses, and

reasonable attorneys' fees incurred, including those incurred in any appeal, post-judgment proceedings, or in enforcing any judgment or award.

26. Contractor Disclosure of Related Business Entities. Contractor hereby discloses that within the past five (5) years, Contractor has held an ownership, membership, partnership, officer, shareholder, or other financial interest in the following corporations, limited liability companies, partnerships, or other business entities engaged in home improvement or related construction services:

[List all related entities here, or state "None."]

Owner acknowledges receipt of this information/disclosure.

27. RESCISION PERIOD/ RIGHT TO CANCEL. OWNER MAY CANCEL THIS AGREEMENT AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE THIS AGREEMENT IS FULLY SIGNED,

Notice of cancellation must be sent to Contractor in writing. A separate Notice of Cancellation form is attached as **Exhibit B.** and incorporated into this Agreement by reference.

28. Relationship of the Parties. Contractor is an independent contractor. Neither Party is an agent, representative, partner or employee of the other Party. The Parties understand this Contract is not an exclusive arrangement. The Parties agree that they are free to enter into other similar agreements with other parties.

29. No Partnership. Nothing in this Agreement shall be construed to create a partnership, joint venture, or any similar relationship between the parties. Neither party shall have any authority to bind, act for, or assume any obligation on behalf of the other.

30. WAIVER OF JURY TRIAL. THE PARTIES HEREBY KNOWINGLY AND VOLUNTARILY WAIVE ANY RIGHT TO A JURY TRIAL IN CONNECTION WITH ANY CLAIM, DISPUTE, OR CONTROVERSY ARISING OUT OF OR RELATING TO THIS CONTRACT. ALL SUCH CLAIMS SHALL BE RESOLVED BY A BENCH TRIAL BEFORE A COURT OF COMPETENT JURISDICTION LOCATED IN NEW HAVEN COUNTY, CONNECTICUT, UNLESS THE PARTIES AGREE IN WRITING TO RESOLVE THE DISPUTE THROUGH BINDING MEDIATION OR ARBITRATION. BY SIGNING THIS AGREEMENT, EACH PARTY ACKNOWLEDGES THAT THEY HAVE HAD THE OPPORTUNITY TO CONSULT LEGAL COUNSEL AND UNDERSTAND THE SIGNIFICANCE OF THIS WAIVER.

31. Governing Law. This Agreement shall be governed by the laws of the State of Connecticut.

32. Severability. If any provision of this Contract shall be held invalid by any court of competent jurisdiction, such holding shall not invalidate any other provision hereof.

33. Entire Agreement. This Agreement constitutes the entire agreement between the parties and supersedes all prior discussions, understandings, or agreements. Any modifications to this Agreement must be in writing and signed by both parties.

34. Execution in Counterparts; Electronic Signatures. This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Signatures transmitted by electronic means, including by PDF, email, DocuSign, or other electronic signature platform, shall be deemed original signatures for all purposes and shall have the same force and effect as original handwritten signatures.

CONTRACTOR:

ARTISAN TILE AT WHITFIELD
DESIGN LLC D/B/A ARTISAN TILE

By: _____

Date

OWNER:

(insert printed name)

Date

(insert printed name)

Date

EXHIBIT A: WORK TO BE PERFORMED

EXHIBIT B: NOTICE OF CANCELLATION

NOTICE OF CANCELLATION

YOU MAY CANCEL THIS TRANSACTION WITHOUT ANY PENALTY OR OBLIGATION, WITHIN THREE (3) BUSINESS DAYS FROM THE DATE THIS AGREEMENT IS FULLY SIGNED.

IF YOU CANCEL, ANY PROPERTY TRADED IN, ANY PAYMENTS MADE BY YOU UNDER THE CONTRACT OR SALE, AND ANY NEGOTIABLE INSTRUMENT EXECUTED BY YOU WILL BE RETURNED WITHIN TEN (10) BUSINESS DAYS FOLLOWING THE RECEIPT BY CONTRACTOR OF YOUR CANCELLATION NOTICE, AND ANY SECURITY INTEREST ARISING OUT OF THE TRANSACTION WILL ALSO BE CANCELLED.

TO CANCEL THIS TRANSACTION, MAIL OR DELVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE, OR ANY OTHER WRITTEN CANCELLATION NOTICE, NOT LATER THAN MIDNIGHT OF THE THIRD BUSINESS DAY FOLLOWING THE FULL EXECUTION OF THE AGREEMENT, TO:

Artisan Tile At Whitfield Design LLC
1200 Boston Post Road
Guilford, CT 06437

I HEREBY CANCEL THIS TRANSACTION:

OWNER:

By:_____

(Signature)

Printed Name:_____

Title:_____

Date:_____

Cancellation is effective if sent prior to midnight of the third business day after the date the Agreement is fully signed.